

with Section 1281.99.” (Code of Civil Procedure §1281.99.)

Section 1281.99 states that “[t]he court shall impose a monetary sanction against a drafting party that materially breaches an arbitration agreement pursuant to subdivision (a) of Section 1281.97 or subdivision (a) of Section 1281.98, by ordering the drafting party to pay the reasonable expenses, including attorney’s fees and costs, incurred by the employee or consumer as a result of the material breach.” (Code of Civil Procedure § 1281.99(a).) Additional non-monetary sanctions can also be awarded. (Code of Civil Procedure § 1281.99(b).)

Previously, the Court found that attorney fees should be awarded under both sections 1281.97(d) and 1281.99(a). Upon reconsideration, the Court finds that section 1281.97(d) is no longer applicable. Still, there was a material breach of the arbitration agreement and therefore fees should be awarded under section 1281.99(a). Further, *Hohenshelt* explained that Civil Code section 3275 provides an excuse for a party who material breached the agreement provided that they make full compensation to the other party for any losses resulting from the delay. (*Hohenshelt, supra*, 18 Cal.5th at 333.) Therefore, the Court may still require Wonderschool to pay attorney fees as a monetary sanction for materially breaching the agreement under section 1281.99.

In the motion for leave to amend, Plaintiff’s counsel sought \$16,950 in fees and costs. Plaintiff spent \$250 in arbitration costs. Plaintiff’s counsel also declares that their reasonable hourly rate is \$650 and they spent 10 hours preparing the motion for leave to amend and 6 hours opposing the motion to compel and anticipate spending 2 more hours on the reply and preparing for the hearing. Wonderschool points out the fees would only be \$11,700 and with the arbitration costs included the total is \$11,950. The Court finds that the amount opposing the motion to compel and the \$250 in arbitration costs should no longer be included as sanctions. Therefore, the new amount of sanctions awarded against Wonderschool is \$7,800 (12 hours at \$650 per hour).

7. 9:00 AM CASE NUMBER: C23-01810
CASE NAME: KEVIN HUMPHREY VS. JASVIR SINGH SHAHI
HEARING ON SUMMARY MOTION
FILED BY:

TENTATIVE RULING:

Before the Court is Defendant Dillard Trucking, Inc.’s Motion for Summary Judgment (“MSJ”).

While the motion is captioned as one for “Summary Judgment, or in the alternative, Summary Adjudication,” the Notice and Points and Authorities make clear that the motion is one for summary judgment only. The Notice indicates that Defendant Dillard Trucking moves the “Court for an Order granting summary judgment in its favor and against Plaintiffs Kevin Humphrey and Dawn Humphrey (“Plaintiffs”).” In addition, both the Introduction and Conclusion of the Ps and As indicate that Defendant seeks an order granting “summary judgment” in its favor – not mentioning summary adjudication.

“A basic tenant of motion practice is that the notice of motion must state the grounds for the order being sought [cites], and the court generally may consider only the grounds stated in the notice of

motion.” (*Kinda v. Carpenter* (2016) 247 Cal.App.4th 1268, 1277.) “The purpose of the notice requirement ‘is to cause the moving party to ‘sufficiently define the issues for the information and attention of the adverse party and the court.’” (*Ibid.*)

Given the above, the Court will treat this motion as a motion for summary judgment only.

Defendant’s MSJ is **denied** as set forth below.

Factual Allegations and Procedural Posture

This matter pertains to alleged contamination of Plaintiff’s Property due to the flow of hazardous materials from Defendant’s property during a substantial rainstorm on January 15-16, 2023. It is alleged that Defendant stored toxic and hazardous materials at their business located at 15031 Byron Highway, in Byron, California (“Dillard’s Property”). On the date of the rainstorm, toxic chemicals stored at Dillard’s Property were washed down the highway and into a drainage channel adjacent to Plaintiff’s Property. That drainage channel was improperly modified by non-moving Defendant Shahi which caused the contaminated water to overflow, flooding Plaintiff’s Property.

For illustrative purposes only, below is a picture showing the location of the Properties as well as a general idea of where the contaminated water allegedly travelled. The Dillard Property is to the left of the image:



As a result of the flooding, Plaintiff’s property, including the structures thereon and the soil, were contaminated with hazardous and toxic chemicals. The tenants renting the Plaintiff’s Property were displaced, and Plaintiff incurred significant costs to remediate the damage.

The operative First Amended Complaint alleges four causes of action based on the above: (1)

nuisance; (2) trespass; (3) negligence; and (4) injunctive relief.

Standard of Review

Summary judgment is proper if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. (Code Civ. Proc. § 437c(c).) A moving defendant satisfies the initial burden of showing that a cause of action has no merit if he shows that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c (p)(2).)

Once the defendant meets that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. (*Ibid.*) The plaintiff then has the burden of demonstrating that triable issues of material fact exist. (*Ibid.*)

The party moving for summary judgment has the burden of persuasion to show there is no triable issue of material fact and thus it is entitled to judgment as a matter of law. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Only if the moving party successfully meets this burden does the burden shift to the opposing party to make its own prima facie showing of the existence of a triable issue of material fact. (*Ibid.*; see also *Chern v. Bank of America* (1976) 15 Cal.3d 866, 873.) “In ruling on the motion, the court must consider all of the evidence and all of the inferences reasonably drawn therefrom, and must view such evidence and such inferences, in the light most favorable to the opposing party.” (*Aguilar, supra*, 25 Cal.4th at p. 843 (internal citations and quotations omitted); see also, Code of Civ. Proc. §437c(c).)

Initial Consideration

Electronic Bookmarks

Plaintiff’s Exhibits in Support of Opposition are 52 pages long and include 18 exhibits (A-R) but fails to include bookmarks to each of the exhibits. “[E]lectronic exhibits **must include** electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit.” (Cal. R. Ct. 3.1110 (f)(4) emphasis added.) The document includes three bookmarks to three pages in Exhibit B – but no other exhibits. Counsel is reminded to comply with the Rules of Court going forward.

Deposition Transcripts

When a deposition is used as an exhibit, “the exhibit must contain only the relevant pages of the transcript.” (Cal. R. Ct. 3.1116 (b).) In addition, the “relevant portion of any testimony in the deposition **must be marked** in a manner that calls attention to the testimony.” (Cal. R. Ct. 3.1116 (c) emphasis added.) Normally, this is done by either highlighting or bracketing the lines being cited to in the Memorandum and/or Separate Statement.

In Reply, Defendant submits the entirety of the 66-page deposition transcript of Melissa Roach, including the 10-page word index. Defendant failed to highlight any portion thereof. In addition, Defendant fails to specifically cite to any portion of the transcript in its Reply papers. This does not aid the Court since Defendant does not direct the Court to the portions of the transcript which Defendant considers important. The Court is not inclined to read the entirety of the transcript to attempt to

determine the relevant portions thereof. (*Hollywood Screentest of America, Inc. v. NBC Universal, Inc.* (2007) 151 Cal.App.4th 631, 644-45.)

Analysis

As noted above, the FAC includes four causes of action. Defendant Dillard does not address each of the claims separately, nor does it outline the elements of each claim. Instead, Defendant Dillard moves for summary judgment as to the entire complaint, arguing the Plaintiff cannot establish the requisite element of causation as to any of the asserted causes of action.

As Defendant Dillard addresses the complaint as a whole and only directs its arguments toward the Plaintiff's alleged failure to be able to establish causation, the Court will only address that issue.

"[C]ausation ... is ordinarily a question of fact which cannot be resolved by summary judgment. The issue of causation may be decided as a question of law only if, under undisputed facts, there is no room for a reasonable difference of opinion.'" (*Kaney v. Custance* (2022) 74 Cal.App.5th 201, 212 quoting *Kurinij v. Hanna & Morton* (1997) 55 Cal.App.4th 853, 864.)

In California, summary judgment law no longer requires "a defendant moving for summary judgment to conclusively negate an element of the plaintiff's cause of action." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 853.) "All that defendant need do is to 'show[] that one or more elements of the cause of action ... cannot be established' by the plaintiff." (*Ibid.*) In other words, there are now two ways for a defendant to prevail on a motion for summary judgment. First, the "defendant may, but need not, present evidence that conclusively negates an element of the plaintiff's cause of action." (*Id.* at 855.) "The defendant may also present evidence that the plaintiff does not possess, and **cannot reasonably obtain**, needed evidence – as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing." (*Ibid.*)

Defendant indicates that it is not attempting to 'conclusively negate' an element of plaintiffs' causes of action. (MSJ at 6:24-26.) This is supported by the fact that Defendant's own expert declaration allows for the possibility that the contamination at Plaintiffs' Property, which consists of petroleum hydrocarbons, could "possibly" come from Defendant Dillard's Property. (Wespestad Decl. ¶ 7.) Instead, it appears that Defendant is arguing that Plaintiffs do not possess, and cannot reasonably obtain, needed evidence to prove their claims.

Defendant presents the declaration of Melissa Roach, its Vice President and CFO, which indicates that the only materials stored by Dillard's are 10-15 gallon supplies of 10W-40 motor oil ("Motor Oil") and that on the date of the incident they did not have any Motor Oil stored at the Property. (Roach Decl. ¶ 8.) Instead, Defendant was still waiting for a new delivery due to the storms. (*Id.* ¶ 9.) She does note that there was a 'single one-gallon catch pan that was partially filled with motor oil.' (*Ibid.*) As they were not storing Motor Oil at the time, Defendant argues it could not have been the source of the contamination of Plaintiff's Property.

Defendant Dillard indicates that it propounded discovery requesting all facts and documents that supported Plaintiffs' various causes of action. Generally, the responses reiterate the general allegations of the operative complaint – indicating that Dillard stored 'toxic chemicals and other waste materials' on its property and that those 'toxic chemicals and other waste materials' made their way

to Plaintiffs' Property. (See e.g. Response to Special Interrogatories 1, 3, 4, 6, 7, 9.) The only document identified is the incident report attached to the operative complaint. (*Ibid.*) Defendant argues that these discovery responses show that Plaintiff has been unable to obtain any admissible evidence to support their claims.

It appears, however, that along with these written discovery responses Plaintiff also produced documents in response to requests from Defendant. These documents include the Healthy Building Soil and Well Water Sampling Report ("Health Report") as well as the Contra Costa Health Services Complaint, Incident, and Notification Report Form ("Incident Report") and Invoice Request Form ("Invoice"). There is also an Inspection Cover Sheet from that date outlining some of the issues spotted that day.

The Incident Report includes information related to the dispatch of the Contra Costa Health Services Hazardous Materials Programs ("Hazmat") to Defendant's Property on January 16, 2023 – the date of the incident. It indicates that Hazmat responded to reports of an oil release from Dillard's and that oil was observed releasing from Dillard's Property into the storm drain system. It also states that Hazmat transported two 55-gallon drums "of oily contaminated debris" from the Property. The Invoice attached thereto indicates that Dillard's was billed just over \$8,000 for Hazmat's response and reiterates that the basis for the Invoice was due to responding to a report of a release of oil from Dillard's. (It appears the Invoice is being disputed, but that fact does not change the analysis as the fact of being charged for Hazmat's actions is not relevant to the underlying issues.)

The Incident Report appears to provide additional context as to the events of the day. While Ms. Roach's declaration indicates that Dillard's was not storing Motor Oil on the date in question, it appears that there were other containers and/or items which may have been part of or contributed to the reported 'oil release' – including other drums of 'oily contaminated debris.' For example, the Inspection Cover Sheet indicates that there was used oil observed on the top of a drum, and in secondary containment and on an oil draining caddy. While the 10-15-gallon supplies of Motor Oil may have been empty, it appears there were other possible sources of the oil found leaking into the drainage system.

It is worth noting that Defendant objects to the admissibility of the Incident Report, Invoice, and Inspection Cover Sheet – and the Court is sustaining those objections. (See Evidentiary Objections below.) The documents are not admissible in the manner presented by Plaintiff in the current context. This may support Defendant's argument that Plaintiffs do not possess any admissible evidence to support their claims. However, it does not go so far as to establish that plaintiff "cannot reasonably obtain" admissible evidence to support their claims.

For example, while the documents are not authenticated, Plaintiff can call the person(s) that prepared them to authenticate them at trial. As to the hearsay objections, calling the witnesses identified in the documents to testify firsthand as to what they saw that day would cure any such objections. Evidence may be considered on a motion for summary judgment "if it is reasonably possible the evidence ... will be admissible at trial." (*Sweetwater Union High School Dist. V. Gilbane Building Co.* (2019) 6 Cal.5th 931, 947 [in context of anti-SLAPP]; *Perry v. Bakewell Hawthorne, LLC* (2017) 2 Cal.5th 536, 541-42.) The above documents indicate that there is evidence that may support Plaintiffs' claims which may be

admissible at trial – even if Plaintiff has not obtained that evidence at this time.

A similar argument can be made with respect to the Health Report. The Health Report indicates that soil samples were taken at several locations on Plaintiffs' Property. Samples were also taken from the water well on the Property. The samples were tested for the presence of gas, motor oil, diesel, and BTEX. As noted by Defendant's expert, while the Health Report indicates that the soil samples do not indicate that 'unacceptable' levels of those compounds (many of which indicated that 'none detected'), the Well Water Results do indicate that the samples contained levels above the 'maximum contaminant levels in the context of risk to human health according to the SF Bay Regional Water Quality Control Board.'

Defendant's expert opines that the failure to explain the precise collection method for the well water undermines the credibility of the Report. Having the person(s) that performed the tests and prepared the report testify will allow the parties to explore the propriety of the testing and results thereof. As for the argument that Plaintiff cannot prove that the chemicals that were found to be present in the water well did not come from Defendant's Property, Defendant's own expert concedes that the source of the "petroleum hydrocarbons" may have come from several locations, including "possibly Dillard's Property." (Wespestad Decl. ¶ 7.) While Plaintiff still has the burden of proof at trial that that some of the chemicals did indeed come from Defendant's Property – Defendant has failed to show as a matter of law that they definitively did not come from Defendant's Property.

The Court does not express any opinions as to Plaintiff's ability to obtain the admissible evidence prior to trial, or their ability to actually get such evidence admitted at trial. However, with respect to the motion for summary judgment, Defendant has failed meet its burden to show that Plaintiffs "cannot reasonably obtain" admissible evidence to support their claims.

Conclusion

Based on the above, Defendant's Motion for Summary Judgment is **denied**.

Evidentiary Objections

The Court need only rule on those objections to evidence that were material to the disposition of the MSJ/MSA. (See CCP § 437c(q).)

Objections to Kevin Humphry Declaration and Exhibits attached thereto:

Objection 1: Overruled.

Objection 2: Overruled.

Objection 3: Sustained (Evid. Code §§ 403, 1200, 702.)

Objection 4: Sustained (Evid. Code §§ 403, 702.)

Objection 5: Sustained (Evid. Code §§ 403, 702.)

Objection 6: Sustained (Evid. Code §§ 1200, 403.)

Objection 7: Overruled.

Objection 8: Sustained (Evid. Code §§ 403, 1200, 1400-1401,

Objection 9: Sustained (Evid. Code §§ 403, 702)

Objection 10: Sustained (Evid. Code §§403.)

Objection 11: Sustained (Evid. Code §§ 403, 1200, 1520-22.)

Objection 12: Sustained (Evid. Code §§ 403, 1200, 1520-22.)

Objection 13-25: Sustained (403, 1400-1401.)

Objections to Douglas B. Flett Declaration:

Objection 26: Overruled.

Objection 27: Overruled.

Objection 28: Overruled.

Objection 29: Sustained (Evid. Code §§ 403, 702, *Hayman v. Block* (1986) 176 Cal.App.3d 629, 638-39.)

Objection 30: Overruled.

Objection 31: Sustained (Evid. Code §§ 403, 1200, 1400-1401.)

Objection 32: Sustained (Evid. Code §§ 403, 1200, 1400-1401.)

Objection 33: Sustained (Evid. Code §§ 403, 1200, 1400-1401.)

Objection 34: Sustained (Evid. Code §§ 403, 1200, 1400-1401.)

Objection to Mark L. Mosley Declaration and Exhibits thereto:

Objection 35: Overruled.

Objection 36: Sustained (Evid. Code §§ 403, 1200, 1400-1401.)

Objection 37: Overruled.

Objection 38-40: Sustained (Evid Code §§ 403, 1200, 1400-1401.)

8. 9:00 AM CASE NUMBER: C23-02480

CASE NAME: ROWENA ESTILLORE VS. CAPGEMINI AMERICA INC.

***MOTION/PETITION TO COMPEL ARBITRATION CONFIRM CONTRACTUAL ARBITRATION AWARD
FILED BY: CAPGEMINI AMERICA INC.**

TENTATIVE RULING:

Summary

Defendant Capgemini America, Inc.'s ("Defendant") Petition to Confirm Arbitration Award is **granted**. No appearance is required at the hearing on December 17, 2025.

Background

In this case, Plaintiff Rowena Estillore ("Plaintiff") alleges claims for discrimination, harassment, retaliation, unpaid wages, fraud, wrongful termination, intentional tort, and intentional and negligent misrepresentation. Each of these claims arises out of her employment with Defendant Capgemini America, Inc. Plaintiff was as a software engineer for Defendant.

This case was removed to the United States District Court, Northern District, California from Contra Costa Superior Court on November 10, 2023. On January 26, 2025, the Hon. James Donato entered an Order re Arbitration in *Rowena Estillore v. Capgemini America Inc.*, USDC Case No. 3:23-cv-05816-JD. The Order entered by the Court specifies that this case is dismissed after the granting of Defendant's Motion for Summary Judgment by the arbitrator, Hon. Victor E. Bianchini (Ret.).(See Attachment 8(c)- Award of Arbitrator)

On August 29, 2025, Defendant filed a Petition to Confirm Contractual Arbitration Award. The Petition